

主題演說

Secondary Use of Government Information in Germany^{*}

Keynote Address

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Matthias Bäcker^{**}

Contents

- I. Introduction
- II. General legal framework for the secondary use of government information
 - A. Secondary use by public authorities
 - B. Secondary use by private actors
 - C. Functional limitations of the general rules
- III. Sector-specific requirements for the secondary use of government information
 - A. Transmission of sensitive data – example: results of surveillance by security authorities
 - B. Inter-agency information systems
 - C. Platforms for complex analyses – example: central platform for health data
- IV. Conclusion

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** Professor, Johannes Gutenberg-Universität Mainz.
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I. Introduction

For a long time, German administrative law was essentially concerned with legally binding acts of the administration. Administrative proceedings were a matter of law mainly insofar as they directly prepared such acts. This also applied to the exchange of information between public authorities, for which there were few legal limits. By contrast, official secrecy characterised the informational relationship between public authorities and private bodies. Only if a person could demonstrate a specific interest did they have a limited right of access to government information.

The legal situation has changed fundamentally in recent decades. The “discovery” of data protection law led to the internal informational relations of the administration being comprehensively covered by legal rules. Germany was a pioneer in this field of law, with the milestones of the Hessian Data Protection Act of 1970, the first data protection law worldwide, and the fundamental 1983 census judgement of the Federal Constitutional Court (*Bundesverfassungsgericht, BVerfG*).¹ In contrast, German law lagged behind international developments when it came to releasing government information to the public. Nevertheless, the federal government and most of the states (*Länder*) now have freedom of information acts that give private actors a general right of access to such information.

¹ BVerfG, 1 BvR 209, 269, 362, 420, 440, 484/83, Dec. 15, 1983, english translation available at https://www.bundesverfassungsgericht.de/SharedDocs/Entscheidungen/EN/1983/12/rs19831215_1bvr020983en.html.

More recently, the idea that government information can contribute to the efficient fulfilment of public tasks and the creation of social value has gained ground in Germany. Today, the metaphor of government information as raw material to be refined by public authorities and private actors is common. From this perspective, the law should provide a framework for the most efficient secondary use of such information. In this contribution, I will give a broad outline of this legal framework.

Beforehand, I would like to clarify the subject of this contribution, i.e. the concept of secondary use. Public authorities collect information to fulfil specific tasks and usually in the context of specific administrative proceedings. For example, a law enforcement authority collects information in order to investigate a criminal offence as a concrete historical event. Secondary use of government information removes this information from its original context and processes it for a new purpose. This concept includes secondary use by the public authority that originally obtained the information and by another public or private body. Secondary use in this sense already occurs, for example, if a law enforcement agency uses information that it has obtained to investigate a specific criminal offence to prosecute another criminal offence. The purpose of data collection and the purpose of secondary data use are further apart if, for example, a research organisation uses health data originally obtained in the course of treating patients for a study on the effectiveness of a drug.

My contribution consists of two parts. German law contains a general framework for the secondary use of government information. This framework applies in principle to all government information, regardless of its subject matter, and to all secondary uses, regardless of their purpose. I will present these general rules in the first part of my

contribution. It will become clear that the general rules reach their limits in certain situations. In order to enable secondary use in those situations, more specific rules are required. These are usually limited to specific information or specific purposes. In the second part of my contribution, I will provide examples of sector-specific rules on the secondary use of government information, which have recently attracted particular attention in Germany.

II. General legal framework for the secondary use of government information

The general legal framework for the secondary use of government information must overcome a conflict of objectives. On the one hand, the law should enable the smoothest possible further processing of government information. Further processing is an essential building block for the efficient fulfilment of public tasks and can make a significant contribution to value creation. On the other hand, the confidentiality of sensitive information must be safeguarded. The rules on further processing therefore have both an enabling function and a limiting function.

This conflict of objectives arises differently in the case of secondary use by a public authority and by a private actor. Public authorities have far-reaching powers at their disposal. They may only act, however, within the scope of their tasks and must comply with a variety of public law requirements. In contrast, private actors are, in principle, free to decide on their objectives and are generally not accountable to the public for their actions. In view of these differences, the general requirements

for the secondary use of government information by public authorities and private actors differ considerably. I will therefore present these requirements separately.

A. Secondary use by public authorities

Secondary use of government information by public authorities requires an efficient public informational infrastructure. German law contains numerous general provisions to ensure such an infrastructure. These aim at the greatest possible digitisation of administrative processes and the interoperability of public information systems. They include, for example, the general obligation to keep digital files or obligations to use standardised file formats. However, the actual development of digital administration in Germany currently lags considerably behind the legal target status. For example, electronic file management has not yet been introduced across the board. In addition, there are still numerous historically grown databases that work with outdated or unusual file formats and cannot be seamlessly networked with other systems. Many administrative processes are also subject to media discontinuities. These not only impair the efficiency of individual processes, but also make the secondary use of the processed data considerably more difficult.

The general requirements for the digital administration intend to create an informational infrastructure. They say nothing directly about which authorities should have which information and with which other authorities they should share this information. However, general principles of German administrative law provide guidelines for these questions. For instance, public authorities are generally obliged to keep

files on their procedures and thus document their actions.² In addition, public authorities must support each other in the fulfilment of their tasks.³ This administrative assistance includes the transfer of government information.

Nevertheless, the general rules provide only a rudimentary legal framework to enable the secondary use of government information. More specific, albeit still quite open, rules can be found on the limits of such use. These limits result primarily from individual rights. Data protection law takes centre stage. The requirements under data protection law generally arise from the General Data Protection Regulation of the European Union (GDPR). In addition, German law specifies this regulation on the basis of various opening clauses.⁴

The secondary use of government information is subject to data protection requirements insofar as this information contains personal data. The concept of personal data is very broad and includes information about a merely identifiable natural person. It is therefore sufficient that government information can be linked to a person by means of additional information.⁵ As a result, a large proportion of all government information falls within the scope of European data protection law.

² This obligation arises from the constitutional principle of the rule of law (Rechtsstaatsprinzip) laid down in Grundgesetz [GG] [Basic Law], art. 20 (3), the German constitution, *cf.* BVerwG, NVwZ 1988, S. 621 (622).

³ GG, art. 35 (1).

⁴ *E.g.*, Regulation (EU) 2016/679, of the European Parliament and of the Council of 27 April 2016 on the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data, and Repealing Directive 95/46/EC (General Data Protection Regulation), 2016 O.J. (L 119) 1, art. 6 (2), (3) and (4), art. 9 (2), art. 10, art. 23, art. 85 et seqq. [hereinafter GDPR].

⁵ *Cf.* Case C-582/14, Patrick Breyer v. Bundesrepublik Deutschland, ECLI:EU:C:2016:779, paras. 31 et seqq. (Oct. 19, 2016).

According to European data protection law, the processing of personal data is only permitted if there is a legal basis.⁶ This applies to each individual processing operation. In the secondary use of government information, processing operations that require a legal basis include the original collection of certain data, the storage of the data, the transfer of the data to another body and the use of the data by the recipient.

The GDPR lists the possible legal bases for processing exhaustively. For the secondary use of government information by public authorities, it is particularly important that processing is lawful if it is necessary for the performance of a public task.⁷ In this case, a further legal basis in EU law or Member State law is needed. German data protection law contains general authorisation regulations that largely correspond to the wording of the GDPR.⁸

Accordingly, the necessity for the performance of a task is the central legal requirement for the storage, transmission and use of government information. In addition, data processing must also be proportionate. The criteria of necessity and proportionality require the public interest in data processing to be balanced against the conflicting rights and freedoms of the data subject.

In addition, the principle of purpose limitation must be observed. According to this principle, the controller must collect data for a specified purpose. They may in principle only process the data for

⁶ GDPR, art. 5 (1) (a), art. 6 (1).

⁷ GDPR, art. 6 (1) (e).

⁸ *E.g.*, with regard to federal public authorities, Bundesdatenschutzgesetz [BDSG] [Federal Data Protection Act], Jan 27, 1977, BGBl. I at 201, last amended by Gesetz [G], June 30, 2017, BGBl. I at 2097, § 3 (Ger.).

purposes that are compatible with the purpose for which it was collected. Further processing for archiving, research and statistical purposes is privileged and therefore always compatible with the purpose of collection.⁹ In addition, provisions of EU law or Member State law may provide for a change in the purpose of processing if they serve a sufficiently important public or private interest.¹⁰

In addition to the requirements for the lawfulness of data processing, data protection law contains procedural and organisational requirements. The rights of the data subject¹¹ are particularly important for the secondary use of government information. On the one hand, these rights guarantee the transparency of the processing. For example, the controller must provide the data subject with information about the intended processing. In addition, the data subject has a right of access. This includes a right to obtain a copy of the processed data as well as meta-information about, among others, the purpose of processing, the origin of the data or the recipients of the data. On the other hand, the data subject's rights grant the data subject some influence on the data processing. For example, the data subject can request that the controller erase data that is no longer required or correct inaccurate data. If the data processing causes particular hardship for the data subject due to their specific situation, the data subject may object to the processing.

By ensuring that the controller only processes data that is necessary and accurate, the rights of the data subject contribute to data quality. In this respect, these rights indirectly promote the public purposes served by the secondary use of government information. It hence falls short of

⁹ GDPR, art. 5 (1) (b).

¹⁰ GDPR, art. 6 (4); *cf. e.g.*, BDSG, § 23.

¹¹ GDPR, arts. 12 et seqq.

the mark to understand data protection law solely as a restriction on secondary use. Rather, the provisions of data protection law have a structuring effect, which also benefits the public interest in effective and efficient secondary use.

B. Secondary use by private actors

The legal framework for the secondary use of government information by private actors differs from the secondary use by public authorities in several respects. Public authorities are not generally obliged to provide data access to interested private parties. Since the turn of the millennium, however, the federal government and most states have introduced provisions that guarantee private actors unconditional access to government information.

The oldest rules on access to government information can be found in the Freedom of Information Acts of the federal government¹² and most states.¹³ These statutes allow anyone to request access to most government information. In recent years, some states have expanded their freedom of information laws into transparency laws.¹⁴ Transparency laws oblige state authorities to publish certain information on a transparency platform independently of a request. This includes, for instance, legislative materials, official statistics, or information on the economic activities of the public sector.

¹² Federal Act Governing Access to Information held by the Federal Government, Gesetz zur Regelung des Zugangs zu Informationen des Bundes [IFG] [Freedom of Information Act], Sept. 5, 2005 (Ger.).

¹³ The only states that have not yet passed a Freedom of Information Act are Lower Saxony (Niedersachsen) and Bavaria (Bayern).

¹⁴ The first German transparency law was the Hamburgisches Transparenzgesetz [HmbTG] [Hamburg Transparency Act], June 19, 2012 (Ger.).

The Freedom of Information Acts grant access to government information to private actors who wish to utilise that information commercially. In principle, access petitioners can also request access to machine-readable raw data and the associated meta-information based on these laws. However, these laws do not provide for the comprehensive publication of such data.

To close this gap, the federal legislature and some states have recently introduced open data regulations.¹⁵ These regulations oblige public authorities to make their raw data sets and associated metadata publicly available in unprocessed, machine-readable form. The metadata must be published on a central platform. The open data regulations are intended to enable private actors to process the published data directly and automatically.

Finally, sector-specific regulations oblige public authorities to publish certain data sets in machine-readable form. Examples include geodata¹⁶ or certain information about the environment.¹⁷

According to both the Freedom of Information Acts and the open data regulations, government information must be provided in the form in which it is available to the authority. These regulations do not provide for the data to be checked before it is passed on or for other specific measures to ensure data quality.

¹⁵ *E.g.*, with regard to federal public authorities, Gesetz zur Förderung der elektronischen Verwaltung [EGovG] [Federal E-Government Act], July 25, 2013, § 12a (Ger.).

¹⁶ *E.g.*, with regard to federal public authorities, Gesetz über den Zugang zu digitalen Geodaten [GeoZG] [Spatial Data Access Act], Feb. 10, 2009, §§ 5 et seqq. (Ger.).

¹⁷ *E.g.*, with regard to federal public authorities, Umweltinformationsgesetz [UIG] [Federal Environmental Information Act], Dec. 22, 2004, § 10 (Ger.).

All regulations that provide for access to government information by private bodies are subject to restrictions. These restrictions go well beyond the regulations for data exchange between public authorities.

On the one hand, access restrictions result from individual rights.¹⁸ As with the exchange of information between public authorities, data protection must be observed. The Freedom of Information Acts stipulate that the obligated authorities may only disclose personal data if the data subject consents or if the access interest of the access petitioner outweighs the rights and freedoms of the data subject. In addition, all regulations on data access contain provisions to ensure the protection of trade secrets and intellectual property rights.

On the other hand, public interests can restrict access to information.¹⁹ For example, a public authority may not release any information that is classified. Access to data is also excluded if it could frustrate the objective of an official procedure or jeopardise public safety. Some authorities are even excluded completely from the scope of the Freedom of Information Acts. For example, the Federal Freedom of Information Act does not apply to the intelligence services.²⁰

More recent regulations go beyond the access of private bodies to government information and deal with the use of the information obtained. The aim of these regulations is to ensure the efficient use of government information and to rule out discriminatory conditions of use. For instance, they limit fees for access to government information and rule out granting exclusive rights of use.²¹

¹⁸ *E.g.*, IFG, §§ 5 et seq.

¹⁹ *E.g.*, IFG, §§ 3 et seq. *er.*

²⁰ IFG, § 3 no. 8.

²¹ Gesetz für die Nutzung von Daten des öffentlichen Sektors [DNG] [Data Use Act], July 16, 2021, §§ 6, 10 (Ger.).

C. Functional limitations of the general rules

The general rules on the secondary use of government information for public authorities and private actors differ significantly. They are, however, similar in terms of their performance and limitations.

The general rules provide a legal framework that enables the secondary use of government information in principle. Secondary use is, however, limited to data currently held by public authorities. The general rules do not oblige public authorities to collect or store certain data or to process the data stored by them in a certain form to enable secondary use. Moreover, there are no general requirements for data quality that are specifically tailored to the secondary use of government information.

Further limitations of the general regulations arise from the restrictions on access to government information. The regulations on data access by private bodies contain far-reaching exceptions to protect individual rights and public interests. The general rules on data exchange between public authorities are formulated more broadly. Nevertheless, as far as the exchange of personal data is concerned, the scope of these provisions is limited due to higher-ranking law. Under European and German law, data protection is not merely a regulatory objective, but also a fundamental right.²² The legal bases for data processing must therefore comply with the fundamental right to data protection and must be interpreted in accordance with this fundamental right. With the requirements of necessity and proportionality, the general legal bases under data protection law provide for minimum requirements only. They therefore cannot be applied to more intrusive data processing, which

²² Charter of Fundamental Rights of the European Union art. 8, 2012 O.J. (C 326) 391, 397; GG, art. 2 (1) and art. 1 (1).

encroaches intensively on the fundamental right to data protection. Such encroachment requires a specific legal basis that is tailored to the purpose of the processing in question and contains specific safeguards.²³

With regard to the secondary use of government information, specific legal bases are required for the following types of use in particular:

1. the transmission and use of data that is particularly sensitive,
2. the creation of comprehensive information systems that enable the exchange of data for many participating bodies,
3. the use of complex analysis technology that can generate far-reaching new information.

III. Sector-specific requirements for the secondary use of government information

The need for specific rules for these types of use is largely undisputed. However, the exact requirements for data access and data use are not yet completely clear. In the following, I will present examples of the various types of use, which have recently been the subject of key court decisions or are the subject of pending proceedings. I should disclose that I am acting as representative or advisor to the data subjects in all pending proceedings that I will discuss.

²³ Cf. e.g., with respect to CCTV surveillance, BVerfG, 1 BvR 2368/06, Feb. 23, 2007, paras. 41 et seqq.

A. Transmission of sensitive data – example: results of surveillance by security authorities

The simplest form of access to government information consists of a public authority transmitting data to another body. A specific legal basis is needed if the data is particularly sensitive. Sensitivity may result from the subject matter of the data. For example, data concerning a person's health or sexual orientation is sensitive in this sense.²⁴ By contrast, the case law of the Federal Constitutional Court has so far focussed on the transmission of data that an authority has collected using particularly intrusive means. The security authorities, i.e. the police, law enforcement agencies and intelligence agencies, are primarily authorised to use such means.

The regulatory problem which arises from the transmission of sensitive data can be illustrated using the example of criminal procedure law. The German Code of Criminal Procedure only authorises the use of intrusive data collection measures, such as the surveillance of telecommunications, under strict conditions. Firstly, the law enforcement authorities may only use such measures to prosecute serious criminal offences. Secondly, intrusive measures must be based on a substantiated suspicion of a criminal offence.²⁵

If the law enforcement authorities were allowed to transfer the information they have gained through intrusive measures to other public authorities based on the general rules, the transfer would only depend on whether that information is necessary to fulfil the tasks of these

²⁴ Cf. GDPR, art. 9 (1).

²⁵ E.g., with respect to telecommunications surveillance, Strafprozeßordnung [StPO] [Code of Criminal Procedure], § 100a (Ger.).

authorities. This could serve to circumvent the legal requirements for intrusive surveillance. The recipient of the data could receive information that they are not authorised to collect themselves. This is because not all official tasks are so significant that they would warrant intrusive surveillance. Furthermore, the principle of necessity under data protection law does not presuppose particularly substantiated factual grounds for a transfer of data.

The Federal Constitutional Court has in its case law derived a criterion for the transfer of sensitive data which serves to avoid such circumvention. The Court refers to this criterion as hypothetical re-collection of data. According to this criterion, the legislator may only authorise such a data transfer if its purpose is so important that it could justify the collection of the data by the measure in question.²⁶

The criterion of hypothetical re-collection of data significantly restricts the secondary use of information that a security authority has obtained by intrusive means. This criterion primarily allows data transfers to other security authorities. Data transfers to authorities that are not specifically tasked with protecting public security and fighting crime are, as a matter of principle, only permitted where there is grave and imminent danger. Furthermore, the recipient may only use the data to avert that danger.²⁷ The recipient must therefore not use the transmitted data for

²⁶ BVerfG, 1 BvR 966/09, 1 BvR 1140/09, Apr. 20, 2016, paras. 286 et seqq., english translation available at https://www.bundesverfassungsgericht.de/SharedDocs/Entscheidungen/EN/2016/04/rs20160420_1bvr096609en.html; BVerfG, 1 BvR 1619/17, Apr. 26, 2022, paras. 230 et seqq., english translation available at https://www.bundesverfassungsgericht.de/SharedDocs/Entscheidungen/EN/2022/04/rs20220426_1bvr161917en.html.

²⁷ Cf. e.g., Gesetz über die Zusammenarbeit des Bundes und der Länder in Angelegenheiten des Verfassungsschutzes und über das Bundesamt für Verfassungsschutz [BVerfSchG] [Federal Act on the Protection of the Constitution], Dec. 20, 1990, § 19 (1) (Ger.).

the regular fulfilment of its tasks, insofar as those tasks go beyond a mere crisis response. Accordingly, the recipient may not store the data in its own databases beyond the specific occasion of the data transfer.

Furthermore, there is little leeway for the transfer of data that a security authority has obtained by intrusive means to private bodies. Such transfers are primarily permitted to avert serious threats by enabling the recipient to take self-protection measures.²⁸ However, transfers for research purposes, which are authorised under many security law statutes, have a special status. For example, research institutions may receive files from criminal proceedings if a research project cannot otherwise be carried out. To protect the data subjects, the transferred files are subject to strict purpose limitation. In addition, the persons reviewing the files are under a special obligation to maintain confidentiality.²⁹

B. Inter-agency information systems

Inter-agency information systems, in which several public authorities share their data, pose more complex regulatory problems than the mere transfer of data. Such systems create specific risks for the data subjects. They usually store data for long periods of time, even if the public authority that originally collected the data no longer needs it to fulfil its tasks. By removing data from the context in which it was collected, information systems may lead to misinterpretations when the data are used. The storage of personal data in inter-agency information

Exceptional cases of data transfers without imminent danger are regulated in BVerfSchG, § 20.

²⁸ Cf. e.g., BVerfSchG, § 22a.

²⁹ Cf. e.g., StPO, § 476.

systems can significantly restrict the privacy of the data subjects due to the sheer volume of data stored. Finally, storing large volumes of data inevitably entails risks for the confidentiality of the data.

These risks arise from the data storage itself, not only from the subsequent transmission and use of the stored data. Data storage therefore requires a legal basis that limits the scope of storage to what is necessary and minimises the remaining risks through substantive, procedural and technological requirements. The subsequent transmission and use of the stored data must be understood as independent processing operations, which in turn harbour risks of their own. Therefore, specific legal bases are also required for the transmission and use of the stored data.

In Germany, there is still considerable uncertainty as to which regulatory approaches are appropriate to mitigate the risks of the storage and use of data in inter-agency information systems. I will illustrate this uncertainty with the example of two information systems. One of them was the subject of a recent landmark decision by the Federal Constitutional Court. The other is currently being challenged in proceedings before several administrative courts.

1. Example 1: Information network of the Federal Criminal Police Office

My first example is the information network of the Federal Criminal Police Office (*Bundeskriminalamt, BKA*). The Federal Criminal Police Office is a federal police authority. There are several other federal and state police authorities.³⁰ The fulfilment of general

³⁰ Cf. in more detail MATTHIAS HERDEGEN ET AL. EDS., CONSTITUTIONAL LAW IN GERMANY, at § 28 paras. 77 et seq. (2024).

police tasks is the responsibility of the states. By contrast, the main task of the Federal Criminal Police Office is to support and coordinate the other German police authorities. The information network is paramount to that task. It is a central database for law enforcement purposes in which all German police authorities participate.

The legal basis of the information network was the subject of a recent landmark judgment by the Federal Constitutional Court.³¹ In this judgment, the Court had to decide for the first time on the constitutional framework of information systems, in which public authorities store data as a precautionary measure for use in future proceedings.

The Federal Constitutional Court declared a provision of the Federal Criminal Police Office Act unconstitutional that permits precautionary storage of data relating to a person who is charged with a criminal offence. Such storage is generally permitted even if the charges are ultimately dropped or the data subject is acquitted in a criminal trial.³² The Federal Constitutional Court held that this provision is unconstitutional as far as it permits data storage. According to the Court, the precautionary retention of police data is only constitutionally permissible if it is based on a sufficiently clear factual basis. If personal data is retained for law enforcement purposes, this prerequisite is only met if the data subject is likely to be connected to future crimes and the data can make a reasonable contribution to the prevention and prosecution of such crimes. The mere fact that the data subject has been

31 Disclosure: I acted as representative of the complainants in the proceedings before the Federal Constitutional Court.

32 Gesetz über das Bundeskriminalamt und die Zusammenarbeit des Bundes und der Länder in kriminalpolizeilichen Angelegenheiten [BKAG] [Federal Criminal Police Office Act], Jan. 1, 1951, BGBl. I at 165, last amended by Gesetz [G], June 1, 2017, BGBl. I at 1354, § 18 (1) no. 2 and (5) (Ger.).

charged with a criminal offence is not sufficient. Since it is uncertain whether the data subject committed the offence, such a charge does not by itself justify the conclusion that the data subject will be linked to future offences. By contrast, the provision in question does not require a more concrete prediction of such offences by the data subject.³³

Moreover, the legal basis of the information network does not distinguish between the processing operations of data storage and data use. It regulates both operations in the same provisions under the common term of further processing. This approach inevitably leads to the legal basis falling short of the mark with respect to data use. Once the police have stored personal data, they are free to use it for all kinds of analyses without further justification. This means that little remains of the principle of purpose limitation, which is of central importance for the fundamental right to data protection. It is therefore essential that the use of the stored data depend on specific conditions. These conditions must relate to the purpose of the use and effectively guide this processing operation. Unfortunately, the Federal Constitutional Court did not decide on data use, since the Court considered the constitutional complaint inadmissible in that respect.³⁴

2. Example 2: Central Register of Foreign Nationals

The judgment on the information network of the Federal Criminal Police Office is also significant for other inter-agency information systems. The Central Register of Foreign Nationals provides another

³³ BVerfG, 1 BvR 1160/19, Oct. 1, 2024, paras. 178 et seqq., english translation available at https://www.bundesverfassungsgericht.de/SharedDocs/Entscheidungen/EN/2024/10/rs20241001_1bvr116019en.html.

³⁴ *Ibid.* paras. 72 et seq.

example of such a system. This register is a database maintained by the Federal Office for Migration and Refugees (*Bundesamt für Migration und Flüchtlinge, BAMF*). It contains information on all foreign nationals who are permanently resident in Germany or who otherwise have a close connection to Germany. With around 26 million records, it is one of the most comprehensive public registers in Germany. Exactly what data is stored about a person depends on the reason for the storage.³⁵ For example, a particularly extensive set of data is stored on people who arrive in Germany as refugees. With respect to these persons, the register contains, among other data, biometric data such as photographs and fingerprint samples as well as information on religious affiliation, education or occupation. Moreover, the Central Register of Foreign Nationals serves as a central document repository, which stores the full text of official and court decisions relating to asylum and residence law.

All public authorities in Germany can access data from the Central Register of Foreigners. In total, more than 16,000 public authorities with over 150,000 individual users have access to this database. However, most agencies are only authorised to access part of the data stored. Some authorities, such as the security authorities, have comprehensive access.³⁶

Several foreign nationals have recently filed lawsuits before various administrative courts in which they challenge parts of the legal basis of the Central Register of Foreign Nationals.³⁷ These lawsuits provide an

³⁵ Gesetz über das Ausländerzentralregister [AZRG] [Central Register of Foreign Nationals Act], Sept. 2, 1994, last amended by Gesetz [G], May 8, 2024, BGBl. I at 152, § 12 (1) no. 3 (Ger.).

³⁶ AZRG, §§ 10 et seqq.

³⁷ Cf. for more detailed information on the proceedings, english available at GFF, THE CENTRAL REGISTER OF FOREIGNERS – A DATA COLLECTION OUT OF CONTROL, <https://freiheitsrechte.org/en/themen/gleichbehandlung/azr> (last visited Dec. 4, 2024).

opportunity for the administrative courts to evaluate the constitutional and European law standards for the relationship between the scope of data storage and the conditions of data use with respect to a complex inter-agency collection of sensitive data. The plaintiffs argue that the register contains some very sensitive information. This is particularly true for the full texts of asylum decisions. The examination of an asylum application requires a comprehensive examination of the applicant's claim to be politically persecuted. The reasoning of such a decision may therefore include information on ethnicity, physical and mental health, sexual identity, violence suffered or the religious, ideological, and political beliefs of the data subject. It is not immediately clear why these documents need to be stored centrally. Moreover, the threshold for accessing them is quite low. The law only requires that knowledge of the data be necessary to fulfil the tasks of the receiving authority. The requirements for access therefore do not go beyond the minimum standard under data protection law. It appears questionable whether this is sufficient to justify the encroachment on the fundamental right to data protection given its considerable intensity.

C. Platforms for complex analyses – example: central platform for health data

Finally, the so-called data transparency platform provides an example of an extensive information system that provides data for complex analyses.³⁸ The Federal Institute for Drugs and Medical Devices (*Bundesamt für Arzneimittel und Medizinprodukte, BfArM*) runs this information system, acting as a research data centre. The data

³⁸ Sozialgesetzbuch Fünftes Buch [SGB V] [Volume 5 of the Social Insurance Code], §§ 303a et seqq (Ger.).

transparency platform contains health data of all persons insured by the statutory health insurance scheme. This is just under 90 per cent of the German population. The data transparency platform makes this data available for various purposes, including medical research, the development and evaluation of pharmaceuticals, planning, analysing and evaluating healthcare and health reporting. It stores basic data such as age and gender as well as information on illnesses, medical treatments, and prescribed medications in pseudonymised form for a period of up to 100 years. Potential users of the data transparency platform include public health authorities, research institutions and pharmaceutical companies.

In the context of an evaluation project, the research data centre generally carries out the necessary calculations as specified by the authorised user. The research data centre then transmits the results to the authorised user in anonymised and aggregated form. If required for the purpose of the analysis, the research data centre may provide the authorised user with pseudonymised individual data sets. Data processing is only permitted in a secure physical or virtual environment under the control of the research data centre.

Two lawsuits are currently pending, which were filed by persons with statutory insurance who are objecting to the transfer of their insurance data to the research data centre.³⁹ The plaintiffs are of the opinion that the legal basis of the data transparency platform infringes

³⁹ Cf. for more detailed information on the proceedings, english available at GFF, DATABASE WITH HEALTH DATA OF 73 MILLION STATUTORILY INSURED INDIVIDUALS MUST NOT BECOME A DATA LEAK, <https://freiheitsrechte.org/en/themen/digitale-grundrechte/datenbank-mit-gesundheitsdaten-von-73-millionen-gesetzlich-versicherten-darf-nicht-zum-datenleak-werden> (last visited Dec. 4, 2024).

European data protection law and the fundamental right to data protection. They state two grounds for their actions.

Firstly, the plaintiffs criticise the centralisation of data storage at the research data centre. They believe that the health insurance funds could carry out the analyses in a decentralised manner through distributed calculations. This would avoid the security risks associated with centralised data storage. In addition, decentralised data storage would strengthen the rights of data subjects. For example, the research data centre is not able to provide a data subject with information about the stored pseudonymised data, as it does not know and is not permitted to know which persons the individual data records relate to. With decentralised data storage, on the other hand, a request for access to the stored data could easily be granted.

Secondly, the plaintiffs consider it disproportionate that their health data is stored in the data transparency platform even against their declared will. In the opinion of the plaintiffs, they must have a right to object to the storage and use of their data, which could be limited to individual analysis projects if necessary. At the very least, particularly vulnerable persons who could be identified with little additional information should have such a right to object. For example, one of the plaintiffs suffers from a combination of rare diseases that only occurs in a small number of people throughout Germany.

Together with their lawsuits, the plaintiffs filed applications for interim measures to prevent the transfer of their health data to the research data centre. These applications were successful.⁴⁰ By contrast,

⁴⁰ Sozialgericht [SG] [Social Welfare Court] June 1, 2022, S 25 KR 932/22 DS ER, <https://www.sozialgerichtsbarkeit.de/node/172283>; Landessozialgericht [LSG] [State

the main proceedings are currently suspended as the research data centre is not yet operational. In one of the lawsuits, however, the court has indicated that it is considering a referral to the Court of Justice of the European Union for a preliminary ruling. The proceedings could therefore lead to a landmark decision on the balance between research interests and data protection in the healthcare sector. Such a decision could be significant beyond the scope of the pending proceedings since several current legislative proposals in Germany and the European Union provide for an expansion of the secondary use of health data.

IV. Conclusion

German law contains a general framework for the secondary use of government information, which is supplemented by numerous sector-specific regulations. This regulatory technique means that the legal basis for secondary use is not very clear. It is fair to assume that nobody has a complete overview of the multitude of public information systems and the associated regulations on the storage and use of data. However, in view of the diversity of official tasks and the data collected in the fulfilment of these tasks, the sector-specific regulatory approach seems unavoidable.

Data protection law currently poses the biggest regulatory challenge in relation to the secondary use of government information. In particular, the data protection requirements for cross-authority information systems are still unclear in several respects. Nevertheless, it would be a

Social Welfare Court], Sept. 14, 2022, L 8 KR 168/22 DS B ER, <https://www.sozialgerichtsbarkeit.de/node/172282>.

misconception to view data protection law merely as an obstacle to the secondary use of government information. Data protection law largely permits such use, provided that it takes sufficient account of the interests of the data subjects through substantive, organisational and procedural requirements. The associated regulatory problems appear to be solvable. The rights of data subjects can even contribute to data quality and thus favour efficient secondary use.

The biggest obstacle on the way to efficient secondary use of government information in Germany is likely to be the unsatisfactory state of digitisation of the administration. The legal requirements for administrative digitisation have so far done little to change the fact that Germany is lagging behind other comparably developed countries. Whether and how better regulation can help to catch up is a key question for modern administration from a German perspective. In this respect, it is important to learn from successful models abroad.

References

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